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BEFORE THE AJUDICATING AUTHORITY
(NATIONAL COMPANY LAW TRIBUNAL)
AHMEDABAD BENCH
AHMEDABAD

Inv. P 1 of 2018 in C.P. (I.B) No. 37/10/NCLT/AHM/2017

Coram: **Hon'ble Mr. HARIHAR PRAKASH CHATURVEDI, MEMBER JUDICIAL**
Hon'ble Ms. MANORAMA KUMARI, MEMBER JUDICIAL

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF AHMEDABAD BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 01.08.2018

Name of the Company: Jotun India Pvt Ltd.
V/s.
PSL Ltd.

Section of the Companies Act: Intervention Application

S.NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	BHADRISH S. RAJU w/d	ADVOCATES	Intervener Jotun India	
2.	DHRUV TOLIYA			
	NAUN PAHWA WITH RITU SHAH FOR THAKKAR AND PAHWA	SR. ADV ADV.	Resp.	
	REKHA SETHI	ADVOCATE	RESP. INDIAN BANK	
3.	BOBBI SETHANA	ADVOCATE	RESP. 2 ABFL	
4.	KRISHNASWAMY A.W. SUNIL BARBAR	ADVOCATE	INDIAN BANK	

ORDER

Advocate Mr. Bhadrish Raju with Advocate Ms. Priya Honavar is present for the Applicant. Advocate Ms. Kshama Sheth alongwith Advocate Mr. Sunil Bhavsar is present for the Indian Bank. Learned Senior Advocate Mr. Navin Pahwa with Advocate Ms. Ritu Shah is present for the in Inv. P 1/2018.

The learned lawyer appearing on behalf of the Applicant filed ~~a~~ copy of the order dated 26.06.2018 passed by the Division Bench of the Hon'ble High Court of Bombay in Appeal no. 68/2018 in CP No. 434 of 2015, whereby appeal is dismissed with the following observations:

> "***In view of the afore-stated reasoning and the case laws cited, we are of the considered opinion that the Company Court while dealing with the winding up petition (saved petitions) shall have no jurisdiction to say the proceedings before the NCLT in respect of revival or resolution issue. We may further state that in case the forum under the Insolvency and Bankruptcy Code, 2016 i.e. NCLT fails to revive or successfully implement the resolution plan, then the Company Judge seized with the winding up petitions (saved petitions) would deal with the petition i.e. company Court and the NCLT to go ahead with the liquidation proceedings/winding up proceedings simultenously would not serve any purpose. There is likelihood of creation of confusion and complexity. To harmonize this likely situation, we observe that the Company Judge, in saved petitions, would exercise jurisdiction in case revival efforts by NCLT fails".***

In view of the above stated order passed by the Hon'ble High Court of Bombay, the present Inv. P 1 /2018 in CP(IB) 37/2017 has now become infructuous, hence is disposed of accordingly.

Heard the arguments of both side's Counsels in respect of Admission of the present IB petition.

The order is reserved in CP No. 37/2017.

MANORAMA KUMARI
(MEMBER JUDICIAL)

HARIHAR PRAKASH CHATURVEDI
(MEMBER JUDICIAL)

Dated this the 1st of August, 2018.